

An Act

ENROLLED HOUSE
BILL NO. 3500

By: Duel of the House

and

Howard of the Senate

An Act relating to transfer-on-death deeds; amending 58 O.S. 2021, Section 1252, as amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section 1252), which relates to acceptance by designated grantee beneficiary; modifying procedures for affidavits to accept certain property; modifying time limitation for acceptance of certain property; providing procedure if transfer-on-death deed is not claimed within certain time period after death of record owner; requiring certain notice; and providing an effective date.

SUBJECT: Transfer-on-death deeds

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 58 O.S. 2021, Section 1252, as amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section 1252), is amended to read as follows:

Section 1252. A. An interest in real estate may be titled in transfer-on-death form by recording a deed, signed by the record owner of the interest, designating a grantee beneficiary or beneficiaries of the interest. The deed shall transfer ownership of the interest upon the death of the owner. A transfer-on-death deed need not be supported by consideration. For purposes of the Nontestamentary Transfer of Property Act, an "interest in real estate" means any estate or interest in, over or under land, including surface, minerals, structures and fixtures.

B. The signature, consent or agreement of or notice to a grantee beneficiary or beneficiaries of a transfer-on-death deed

shall not be required for any purpose during the lifetime of the record owner.

C. A designated grantee beneficiary may accept real estate pursuant to a transfer-on-death deed only on behalf of himself, herself, or a legal entity over which he or she has proper authority. A beneficiary shall not accept such real estate on behalf of another designated beneficiary.

D. Each designated grantee beneficiary wishing to accept real estate pursuant to a transfer-on-death deed shall execute an affidavit affirming:

1. Verification of the record owner's death;
2. Whether the record owner and the designated beneficiary were married at the time of the record owner's death; and
3. A legal description of the real estate.

E. ~~The~~ Each designated grantee beneficiary shall attach sign and record an affidavit and a copy of the record owner's death certificate to the beneficiary affidavit. For a record owner's death occurring on or after November 1, 2011, the beneficiary shall record the affidavit and related documents with the office of the county clerk where the real estate is located within nine (9) months of the grantor's death, otherwise the interest in the property reverts to the deceased grantor's estate; provided, however, for a record owner's death occurring before November 1, 2011, such recording of the affidavit and related documents by the beneficiary shall not be subject to the nine-month time limitation acknowledging the beneficiary's acceptance of the interest in the real estate. A beneficiary may only accept real estate on his or her own behalf; provided, however, multiple beneficiaries may sign the same affidavit. The affidavit may be filed at any time after the death of the record owner provided that the presentment date for creditors has not passed for the estate of the record owner as provided in subsection F of this section. Notwithstanding the provisions of Section 26 of Title 16 of the Oklahoma Statutes, an affidavit properly sworn to before a notary shall be received for record and recorded by the county clerk without having been acknowledged and, when recorded, shall be effective as if it had been acknowledged.

F. If no designated grantee beneficiary claims the real estate within one (1) year of the death of the record owner, such property

may be included in an estate of the record owner opened pursuant to Title 58 of the Oklahoma Statutes. Notice shall be provided to all named beneficiaries of the deed in the manner required by the probate procedure for a known creditor of the estate. Any unclaimed interest remaining at the expiration of the presentment date for creditor claims in the probate of the estate of the record owner shall be forfeited and barred from being claimed by the named beneficiary and the unclaimed interest shall become property of the estate. If an estate of the record owner is opened for probate prior to the one-year anniversary of the date of death of the record owner, the personal representative shall be required to provide a new notice to each unclaimed beneficiary at his or her last-known address, or if an unclaimed beneficiary's address is unknown or the unclaimed beneficiary has died after the record owner but prior to acceptance, then by publication in one issue of a newspaper in the county in which the property is located. The unclaimed interest shall not be forfeited to the estate until thirty (30) days after the mailing of notice or the publication of notice in the newspaper. Upon the expiration of such period, the unclaimed interest shall become property of the estate.

G. A beneficiary affidavit recorded pursuant to this section before November 1, 2023, in which one or more, but not all, named beneficiaries of a transfer-on-death deed explicitly accepts the interests being conveyed by the deed on behalf of all or some of the beneficiaries named therein shall be effective to accept such interests if executed by at least one of the named beneficiaries accepting such interests.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____